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Bill eliminating single-family zoning heads to governor's desk

September 2, 2021 | Thousand Oaks Acorn (CA)
Author: TO Acorn Staff | Section: News | 848 Words
OpenURL Link

In what supporters say is an effort to address the rising cost of housing in California, the state's legislators voted this week in favor of a bill that would make it easier for property owners to subdivide their single-family lots and build up to two housing units on each, amounting to four total.

Some analysts suggest the bill could allow for up to 10 units under certain circumstances.

Dubbed the California Housing Opportunity and More Efficiency Act, Senate Bill 9 requires cities to approve any proposed housing development containing no more than two residential units within a single-family residential zone without discretionary review or hearing.

Authored by state Senate leader Toni Atkins (D-San Diego), SB 9 passed the Assembly on Aug. 26 (45-19) and the Senate on Aug. 30 (28-7). It now heads to the desk of the governor, who has not yet indicated his position on the bill.

Voting in opposition were three local Assembly members: Jacqui Irwin (D-Camarillo), Richard Bloom (D-Santa Monica) and Jesse Gabriel (D-Woodland Hills), whose territories stretch from Santa Monica in the east to Oxnard in the west.

Irwin, a former Thousand Oaks City Council member, told the Acorn she does not support a one-size-fits-all approach to solving what she called "an affordable housing crisis" in the state.

"Requiring cities to approve lot splits completely takes away the local control," said Irwin, whose 44th District includes Thousand Oaks, Moorpark, Camarillo, Oxnard and Port Hueneme. "It doesn't allow for local considerations such as oak tree ordinances, water, traffic, parking. Cities are required to plan for expanded housing, and they should determine that based on local conditions and infrastructure considerations."

The only local legislator to vote for the bill was Suzette Valladares (R-Santa Clarita), whose district includes most of Simi Valley.

"I hear every day from people who are considering leaving California because it's simply to expensive to live here," Valladares said. "I believe that this bill is a small step to making housing more affordable to many Californians while providing important protections and financial stability for homeowners."

Bloom and Gabriel did not respond to a request for comment by press time.

Assemblymember Steve Bennett (D-Ventura), who represents parts of Oxnard up through Santa Barbara as well as Santa Paula, Ojai and Somis, did not vote.

Likewise, state Sen. Henry Stern (D-Calabasas) did not cast a vote. Stern, who is awaiting the birth of his first child, said he had hoped to vote remotely but was denied permission to do so. Had he been allowed, Stern told the Acorn, he would have voted no.

"I didn't support SB 9 the first time around and would not have changed my position this time around had I been afforded the ability to vote," he said. "(Also), I was not absent. I was not allowed to remotely participate despite my request to do so out of caution for the impending birth of my first child and the baby's mom, and the state of COVID-19 breakthrough infections in the Capitol."

Housing push

According to estimates from UC Berkeley's Terner Center for Housing Innovation, existing laws allow as many as 1.8 million accessory dwelling units, or small homes added to existing lots, to be built in California. If SB 9 passes, that figure would rise significantly.

"With SB 9, we estimate that approximately 700,000 additional new units would become market feasible, representing a 40% increase in existing development potential across California's single family housing parcels," the center's July report says.

While some housing advocates and the development/construction sector support the bill, many residents and cities throughout the state do not appear to share their enthusiasm.

A recent David Binder Research poll commissioned by housing rights advocate group Housing is a Human Right showed 63% of those polled opposed SB 9.

The City of Thousand Oaks sent the state a letter the day of the vote officially opposing SB 9, saying it "will not spur much-needed housing construction in a manner that supports local flexibility, decision making and community input."

"The City of Thousand Oaks is proud of its robust public notification process which promotes transparency and public participation on new developments," says the letter signed by Mayor Claudia Bill-de la Peña. "SB 9 removes such transparency by requiring cities to ministerially approve split lots without (California Environmental Quality Act) evaluation, review by its planning commission and more importantly, local community input."

The City of Los Angeles and the 16 cities that make up the South Bay Cities Council of Governments, whose members include El Segundo, Hawthorne and Manhattan Beach, have also written letters of opposition to legislators.

Though Irwin does not support this legislation, she did offer a different solution to provide affordable housing: bring back redevelopment agencies.

"California has an affordable housing crisis, and I have supported bills at the state level that have given cities tools to deal with that issue," she said. "When I was on the (Thousand Oaks) City Council, we approved an inclusionary housing policy and invested millions of dollars in affordable housing through redevelopment. Unfortunately, that program was ended by the state, and there continues to be resistance to bringing back a funding source to give cities the resources they need to help build affordable housing."

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- **Citation (apa Style)**
  Acorn Staff, T. (2021, September 2). Bill eliminating single-family zoning heads to governor's desk.*Thousand Oaks Acorn (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/184C2B575B462D80.